

M/s Balaji Oil Udyog v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 December 2019 · WRIT - C No. 41957 of 2019 · **Writ disposed of; petitioner relegated to Clause 6.5; restoration on deposit of ₹1,00,000; no coercive action for seven weeks.**

HEADNOTE

A writ seeking certiorari to quash an electricity notice, where the consumer disputed the correctness of the bill, is not entertained because Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an available statutory remedy. The Court disposed of the petition with a direction that a Clause 6.5 application filed within two weeks be decided by speaking order within four weeks after hearing; that the connection be restored forthwith if ₹1,00,000 were deposited towards outstanding dues within ten days; and that no coercive action be taken for seven weeks.

FACTUAL SUMMARY

M/s Balaji Oil Udyog filed Writ-C No. 41957 of 2019 in the Allahabad High Court seeking certiorari to quash a notice dated 23 August 2019 issued by respondent no. 3 of the electricity authorities. The petitioner's grievance was that the bill raised against it was incorrect. Counsel for the petitioner and for the Electricity Department were heard. The Court treated the dispute as one of bill correctness and did not examine the merits of the notice or the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

statutory remedy for bill-correctness dispute

HOLDING

Where the writ petitioner disputes the correctness of an electricity bill, Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the statutory remedy, and the High Court will not entertain the writ. ¶ 4

PRINCIPLE TAGS

clause-6.5-statutory-remedy

The Court declined to entertain a certiorari challenge to a bill-correctness notice because Clause 6.5 of the Supply Code is an available statutory remedy, and sent the consumer to that authority with a time-bound speaking-order direction. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND VALIDITY OF THE NOTICE DATED 23.8.2019

Left to the Clause 6.5 authority; the writ was not decided on merits. ¶ 3-5